

From: Rich Mclean drrichmcleanwhistleblower@gmail.com 
Subject: Re: Notice of decision: PID [SEC=OFFICIAL:Sensitive]
Date: 20 August 2022 at 10:48 am
To: Public Interest Disclosure PublicInterestDisclosure@pmc.gov.au
Cc: Rich Mclean drrichmcleanwhistleblower@gmail.com



I emailed parliamentarians.pdf



Peter,

As this was sent to every parliamentarian,
and

EVIDENCE
info@everydayjustice.com.au...



3. The Enterprise agreement

National Disability Insurance Agency Enterprise Agreement 2020-2023

I wish to state that under the enterprise agreement, I should have had certain legal obligations assured to me and processes followed with my tenure at the NDIA/A as an approved therapeutic support

4. The Fair Work Act is deemed law and it oversees the agreement

The NDIA Enterprise agreement 2020-23 is made under the **Fair Work Act 2009**.

5. I am a Public Service Employee

For the purposes of NDIS/A I am a PSA

'Who are Australian public service employees?

The Australian Public Service formally comprises **all Australian Government departments and agencies where staff members are or can be employed under the *Public Service Act 1999***. At June 2013, there were 167,257 APS employees, down from 168,580 APS employees in June 2012.

I am eligible as a PSA because I am an 'Australian citizen at the time of application. have as a minimum an Australian recognised bachelor degree in the last four years and can provide evidence of your qualification prior to commencing.'

The NDIA has a page dedicated to the PSA definitions on the federal website and in that existing implicitly condones employing PSA's as workers and employers.

It also has a dedicated NDIA page meaning if you are an employee of the

then you are automatically classified as a PSA

That link for clarity is here:

<https://www.apsjobs.gov.au/s/graduate-portal/department/national-disability-insurance-agency-MCLDFESMUA AZDGNA76DQLYSRLUBQ>

A Definition of Federal Public Servant

I am defined as a **Federal public service employee**

Employment in the federal public service must be with a department or branch

that **forms part of the public service.**

This is the NDIS/A, and it is a statutory authority under the portfolio of the (?) minister.

I am a public servant



[Select organisation](#)

[Logout](#)

Portal access requests

NDIS Quality and Safeguards Commission Port

View employee details

Employee's details

First name : Richard

Last name : McLean

Email address : rich@richmclean.com.au

Work phone : 0418391532

Mobile phone :

Provider's details

Provider legal name : MCLEAN, RICHARD WILLIAM

Provider trading name :

ABN : 72066207615

Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate

Address : 2 MCCUBBIN STREET FOOTSCRAY VICTORIA 3011

Access status

Access Status : Active

Stable Id : NM622036

3. Required user role(s) *

Choose at least one user role from the options below.

☐ Approved Quality Auditor

An employee of an Audit organisation, this person has the same responsibility of an 'Auditor' role and more. They are responsible for witnessing and submitting an assessment on a registration application, and providing an audit recommendation.

☐ Auditor

An employee of an Audit organisation, this person is responsible for witnessing and submitting an assessment on a registration application.

☒ Authorised Reporting Officer

Responsible for accepting a behaviour support plan and submitting monthly reports on the use of an authorised restrictive practice.

☐ Behaviour Support Practitioner

Responsible for developing and lodging a behaviour support plan for a person with disability. This role requires approval as an NDIS behaviour support practitioner.

☒ Behaviour Support Practitioner Admin

Provides data entry support to a Behaviour Support Practitioner to enter a behaviour support plan in the portal.

☒ Behaviour Support Reporting Admin

Provides data entry support to an Authorised Reporting Officer by entering reports on the use of an authorised restrictive practice.

☒ Worker Screening Officer

Responsible for managing the provider's workers.

☐ Practitioner Profile

A role provided to an NDIS Behaviour Support Practitioner to allow them to manage their profile. A practitioner should contact the NDIS Commission if they require access to this role. Note 'Behaviour support practitioner' role should be requested to lodge behaviour support plans in the portal.

Correct me if I am wrong but I am an employee.

I have already killed myself from this systemic oppression as you are well aware

 *40260* Mercy Health	UR Number 2645287 Surname McLean First Name Richard DOB 08/04/1973 Address 2 Mc Cubbin Street 3011 Footscray VIC Australia Home Phone 0400639248 Work Phone	Page No. 133 Gender Male
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Patient Progress
From 08/09/2017 To 18/03/2021

Date of Entry: 26/02/2021
Time of Entry: 12:10
Clinician: S33(1)
Designation: RN Grade 5
Team: Werribee Mercy Hospital Consultation Liaison Psychiatry Service

Status:
ITTO

Referral received from inpatient psychiatry team to review above consumer currently admitted to ICU after serious attempt to self-harm with intent to end his life.

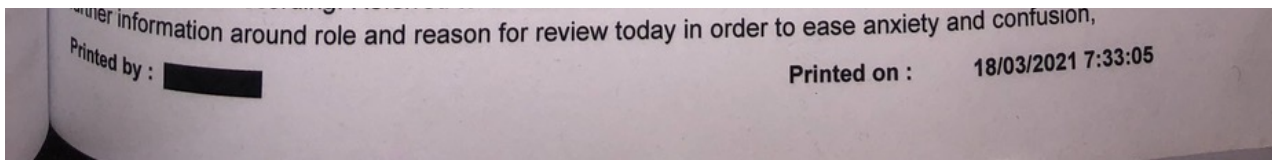
47 male longstanding history of schizophrenia, admitted due to increasing threats and plan to end his life on the b/g of injustices done to him through previous treatments under the MHA. Consumer has negative outlook towards MHS system. Ongoing paranoia and animosity towards all hospital staff especially psychiatric teams. . Has history of being litigious through phone recording often without consent, using calculating behaviour in order to meet own needs and possible staff splitting. File review suggest Vape pen, shoe string was utilised and suicide letter was also found.

Brief discussion with ICU team who have advised that attempt was lethal and still requires surgical repair. Currently not medically cleared. Management plan in ICU notes for nurse to follow. Medication chart completed according to CMB med charts. Advised ICU to focus of containment and consistency in his management. Minimal negotiations around psychiatric management, follow management plan provided. Visitors are allowed by visitation must be supervised. Aim for swift medical clearance and is for transfer. Advised client will require ICA bed given risk of repeating self-harm or suicide.

S33(1)
[Redacted]
[Redacted]
[Redacted]

Richard lying in bed was fast asleep and was easily woken up. All three clinicians introduced ourselves and Richard agreeable to engage. Richard able to recall and understand why he was brought into ICU. Showed insight into his action however remains to be supportive of this. Richard reported he thought this was the only way 'out of that place'. He reported feeling locked up. He referred to himself as being 'jailed'.

Richard acknowledged concerns from community regarding his plan to end his life on his Bday hence admission was warranted to prevent this. Richard abruptly stopped the assessment and asked all 3 clinicians credentials again. This was given again to him. Richard refused to talk any further as he felt that CL team were recording. Referred to CL team as 'Part of the system'. CL team provided some



So I guess I have no value to the world now

As such

I now plan to do what the world wants me to do

Because its not right

That you as a PSA

Reject me and my humanity dignity worth and equality before the law

As required by the charter of human rights for people with disability

Where are you located Peter, so before I am finally fucking destroyed, I can atone my appreciativeness to you personally,

Just give me a location

Or in a
More simple way

Would you like me to "admit" what the "voices" tell me?

After all because my whole pic has been destroyed by a single incident that's persecuted me over decades, if I simply admitted fault, the I guess it would pave the way for the detriment to be paid, would it not?

After all-once the main theme is legered, obviously there will be mirth and laughter and we can all carry on, and in addition my justice issues of which there are many-will fall over in my favour

What do you think!?

R

On 8 Aug 2022, at 12:15 pm, Public Interest Disclosure <PublicInterestDisclosure@pmc.gov.au> wrote:

OFFICIAL: Sensitive

Dear Mr McLean,

Notice of decision not to allocate disclosure pursuant to section 44(3) of the Public Interest Disclosure Act 2013 (Cth)

I refer to the correspondence you sent the Department of the Prime Minister and Cabinet (PM&C) Public Interest Disclosure inbox on 4 August 2022.

I am an Authorised Officer of the Department of the Prime Minister and Cabinet (PM&C) under the Public Interest Disclosure Act 2013 (PID Act). You can access a copy of the PID Act [here](#).

Based on your correspondence, I understand that you are raising concerns about the conduct of Mr Steve Iasonidis and a range of other Commonwealth agencies.

Section 26 of the PID Act provides that a disclosure received by PM&C must meet the following criteria under the PID Act to be an internal disclosure:

- the disclosure is made by a person who is, or has been, a public official (*defined in section 69 of the PID Act*);
- the disclosure is made to an authorised internal recipient (*defined in section 34 of the PID Act*); and

- the disclosure tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct (*described in section 29 of the PID Act*).

Decision not to allocate

I have decided not to allocate the disclosure to PM&C because the disclosure does not satisfy all of the requirements to be an internal disclosure in accordance with section 26 of the PID Act.

Specifically, I consider that the disclosure has not been made to an authorised internal recipient as defined in section 34 of the PID Act because:

- The matters raised in your correspondence do not relate to PM&C.
- You do not belong (and have not belonged) to PM&C for the purpose of the PID Act.

As such, I consider that there is no reasonable basis on which the disclosure could be considered an "internal disclosure" under s 26(1) of the Act. Accordingly, your disclosure does not meet the requirements for an internal disclosure under the PID Act and will not be allocated to PM&C.

Other courses of action that may be available to you

As your concerns appear to relate to the conduct of a range of Commonwealth agencies, you may wish to consider raising your concerns with the agency to which the conduct relates. From your correspondence, I understand that you have already contacted the Commonwealth Ombudsman.

Sincerely,
Peter Rush
PM&C Authorised Officer

From: Rich Mclean <drichmcleanwhistleblower@gmail.com>
Sent: Thursday, 4 August 2022 4:11 PM
To: Public Interest Disclosure <PublicInterestDisclosure@pmc.gov.au>
Cc: Rich Mclean <drichmcleanwhistleblower@gmail.com>
Subject: PID from Rich Mclean Act now to avoid my likely death

Dear OPMC regarding a PID from Dr Rich McLean:

I need this to be urgently addressed within days for these reasons:

- I'm in danger of a physical attack and/or
- An elongated system of oppression which I will be:
- Framed for a crime I have not committed,
- Set up to fail epically as has been the case,

- incarcerated an award of the state in a psychiatric ward somewhere.

I am currently under systemic oppression from Government

I am tortured systemically and universally

I am denied the human rights of health care and I have:

- Mental illness
- Cancer
- A likely ABI
- I need a psychologist psychiatrist and neurologist

I have been framed and do not have access to a lawyer and ostracised from any law firm,

This is in opposition to the Charter of Human Rights of people with a Disability ratified by the Government in 2008,

This systemic persecution, nearly universally in the defence of money power and privilege protecting reputations,

Is actioned by Public Officials who act unanimously via proxy and in deceitfulness,

This has and is happening in a cowardly way to identify victimise vilify and further oppress me,

Victimisation on this scale is abhorrent and

I cant believe I have had to reverse engineer this over a lifetime to the top,

It killed me on the journey...I lived, but was forsaken by society,

A conspiracy to pervert the course of justice has and is occurring,

There must be a better way forward than:

Maliciously rendering me without:

Agency,
Basic Human rights worth & dignity,
A voice,
The victim of narccists,
Intelligently designed a vagrant,
Bereft of prosperity,
My job destroyed,
My business maimed ,
My identity and person desecrated.

Ethics means ‘do no harm.’

Harm is being done to me and has been fuelled by libel slander rooted in base emotions of prejudice and stigma.

Actioned by cowardly faceless Government Officials public office who have acted with cowardice to tow the party line of victimisation regarding me.

Please do what is right and light and protect me, as all I have ever done is to ask for help and help people

I want this to continue, (helping people), after I have literally suffered an allegorical persecution resulting in my attempted suicide I consider an allegorical crucifixion.

I miss my friends & family and I actually love people despite their deceit or misunderstanding.

Dr McLean

drrichmcleanwhistleblower@gmail.com

Please seethes link:

<https://youtu.be/qsBItvCwATQ>

It is a YouTube video.

Please also refer to the following PDF

I have had to rush this, as I am under duress and attack.

It is not complete but I have ample evidence.

Violently beaten up in a public hospital and attacked then covered up, with zero recourse

This is the Government's doing, and I can prove it

<https://www.killhim.info/pid>

www.killhim.info

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